



CONSUMER GUIDE TO AGENCY RELATIONSHIPS



We are pleased you have selected Coldwell Banker Residential Real Estate LLC d/b/a Coldwell Banker Realty to help you with your real estate needs. Whether you are selling, buying or leasing real estate, Coldwell Banker Realty can provide you with expertise and assistance. Because this may be the largest financial transaction you will enter into, it is important to understand the role of the agents and brokers with whom you are working. On these pages is information that explains the various services Coldwell Banker Realty can offer and our options for working with you.

REPRESENTING SELLERS

Most sellers of real estate choose to list their home for sale with a real estate brokerage. When sellers do so, they sign a listing agreement that authorizes the brokerage and the listing agent to represent their interests. As the seller's agent, Coldwell Banker Realty and the listing agent must: follow the seller's lawful instructions, be loyal to the seller, promote the seller's best interests, disclose material facts to the seller, maintain confidential information, act with reasonable skill and care and, account for any money they handle in the transaction.

REPRESENTING BUYERS

When purchasing real estate, buyers usually choose to work with a real estate agent as well. Often the buyers want to be represented in the transaction. This is referred to as buyer's agency. Coldwell Banker Realty and the buyer's agent that represents a buyer's interest in a transaction must: follow the buyer's lawful instructions, be loyal to the buyer, promote the buyer's best interests, disclose material facts to the buyer, maintain confidential information and, account for any money they handle in the transaction.

CONTEMPORANEOUS OFFER DISCLOSURE

Ohio law permits real estate agents and brokers to represent more than one buyer at a time and to show each buyer the same properties. In some instances, more than one buyer represented by the same agent may want to make an offer to purchase the same property that will be considered by the seller at the same time. Under Ohio law, this is referred to as "contemporaneous offers". If this occurs, Ohio law requires that you be notified in writing of this fact by your agent. This written notice can be communicated via email or text message. If written notification cannot be delivered to you in a timely manner, your agent can provide this notice to you verbally. If you are notified that a contemporaneous offer situation exists, you can request to be referred to another licensee.

Finally, your agent is not permitted to disclose the identity of the buyers or the terms of their offers to purchase. This information is considered confidential information under Ohio law and must be maintained by the agent/broker.

DUAL AGENCY

Occasionally the same agent who represents the seller also represents the buyer. This is referred to as dual agency. When Coldwell Banker Realty and its agents become "dual agents," they must maintain a neutral position in the transaction. Coldwell Banker Realty and the agent may not advocate the position of one client over the best interests of the other client or disclose any confidential information to the other party without written consent. In the event that you refuse to consent to dual agency or seek to terminate the agency relationship as a result of the proposed dual agency, Coldwell Banker Realty management may determine which agency relationship to terminate. You may request that a separate agent of Coldwell Banker Realty be appointed to represent your interests or you may terminate your agency relationship and seek representation from another brokerage, however, you may be obligated to pay a commission to Coldwell Banker Realty.

DIFFERENT COLDWELL BANKER REALTY AGENTS REPRESENTING THE BUYER AND SELLER

On occasion, the buyer and seller will each be represented by two different agents from Coldwell Banker Realty. In this case, the agents may each represent the best interest of their respective clients, but Coldwell Banker Realty and its management level licensees will be considered dual agents. As a dual agent, Coldwell Banker Realty and its management level licensees will maintain a neutral position and cannot advocate for the position of one client over another. Coldwell Banker Realty will also protect the confidential information of both parties.

SUBAGENCY

Coldwell Banker Realty does not act as a subagent nor allow other brokerages to act as a subagent for a seller.

COOPERATING WITH OTHER BROKERAGES

Coldwell Banker Realty will cooperate with other brokerages on an equal and consistent basis. This means Coldwell Banker Realty and its agents will make its listings available to other brokerages to show, provide information that is not confidential, and present all offers written by other brokerages in a timely and objective manner. A buyer's broker, at the direction of a seller, may be compensated by a seller directly or by a seller through Coldwell Banker Realty's offer of compensation, even though the buyer's broker represents the buyer's interests. Alternatively, a buyer's broker may be compensated directly by the buyer pursuant to an agreement between buyer and buyer's broker. Coldwell Banker Realty may accept compensation from sellers and listing brokers even though Coldwell Banker Realty represents the buyer. Coldwell Banker Realty will not offer compensation to nor cooperate with subagents.

BROKER COMPENSATION

Brokerage commissions are not set by law, are fully negotiable, and may be paid by the seller, the buyer, the landlord, the tenant, or a third party, or by sharing or splitting the fees and commissions between brokers.

UNREPRESENTED CUSTOMERS

Coldwell Banker Realty may work with unrepresented customers, provide unrepresented customers with non-confidential information, and write offers to purchase or lease property, but will not act as the agent of unrepresented customers. It is important for unrepresented customers to understand that Coldwell Banker Realty and Coldwell Banker Realty's agents have duty of full disclosure to the seller or buyer they are representing, unrepresented customers should not share any information that they would not want the buyer or seller represented by Coldwell Banker Realty to know.

AUDIO-VIDEO SURVEILLANCE

Residential or commercial property may have surveillance devices installed which may have audio-video recording or transmitting technology. Such surveillance devices include security systems, video doorbells, nanny cams, and other technology which may be recording or transmitting audio-video during a viewing of the property. Additionally, such devices may capture video of the inspection of the property. This notice is to allow the prospective buyers and other parties visiting a property to be aware that their conversations and actions while visiting property may not be private.

A SIGNED COPY OF THIS CONSUMER GUIDE TO AGENCY RELATIONSHIPS MUST BE RETAINED BY THE BROKER.

Ohio law requires that Coldwell Banker Realty provide you this Consumer Guide and ask you to sign the form below, acknowledging receipt of this Consumer Guide. Your signature will not obligate you to work with our company if you do not choose to do so.

SoYoung Park

Name (Please Print)

 dotloop verified
04/20/26 8:39 PM EDT
DDWL-VKV7-KC8A-JGSX

Signature

Date

Name (Please Print)



Signature

Date

We hope you find this information to be helpful to you as you begin your real estate transaction. When you are ready to enter the transaction, you will be given an Agency Disclosure Statement that specifically identifies the role of the agents and brokerages. Please ask questions if there is anything you do not understand.

FAIR HOUSING & BLOCKBUSTING STATEMENT: It is illegal, pursuant to the Ohio Fair Housing Law, Division (H) of Section 4112.02 of the Revised Code and the Federal Fair Housing law, 42 U.S.C.A. 3601, as amended, to refuse to sell, transfer, assign, rent, lease, sublease or finance housing accommodations, refuse to negotiate for the sale or rental of housing accommodations, or otherwise deny or make unavailable housing accommodations because of race, color, religion, sex, familial status as defined in section 4112.01 of the Revised Code, ancestry, military status as defined in that section, disability as defined in that section, or national origin or to so discriminate in advertising the sale or rental of housing, in the financing of housing, or in the provision of real estate brokerage services. It is also illegal, for profit, to induce or attempt to induce a person to sell or rent a dwelling by representations regarding the entry into the neighborhood of a person or persons belonging to one of the protected classes.

Corporate Offices
8800 Lyra Drive Ste 625
Columbus, OH 43240

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**COLDWELL BANKER
REALTY**



COLDWELL BANKER REALTY BUYER REPRESENTATION AGREEMENT

In consideration of Coldwell Banker Residential Real Estate LLC d/b/a Coldwell Banker Realty ("Broker") agreement to designate a sales associate affiliated with Broker to act as the legal agent of the Buyer for the purpose of identifying and negotiating to acquire real estate for SoYoung Park _____ or their nominee ("Buyer" or "You"), the Buyer hereby grants to Broker the exclusive right to represent Buyer in such acquisition under the terms and provisions of this Coldwell Banker Realty Buyer Representation Agreement ("Agreement"). The terms "acquisition" and "acquire" shall include the purchase, exchange or option of real estate by Buyer, Buyer's nominee, any entity or trust in which Buyer has any ownership or interest, or anyone acting on Buyer's behalf.

Section 1 – Representation: Broker designates and Buyer accepts Susan Wainfor, Brian Gibson _____ ("Designated Agent") as the only legal agent(s) of Buyer for the purpose of representing Buyer in the acquisition of real estate by Buyer.

Section 2 – Term: This Agreement shall be effective when signed by the Buyer and continue until 11:59 p.m. on 07/31/2026 _____, when it shall then terminate.

Section 3 – Commission: If Buyer agrees to purchase or acquire any property during the term of this Agreement, Buyer shall pay Broker a total Commission of \$425.00 and _____ % of the property's selling price. ***You acknowledge and understand that brokerage commissions are not set by law, are fully negotiable, and may be paid by the seller, the buyer, the landlord, the tenant, or a third party, or by sharing or splitting the fees and commissions between brokers.***

If, during the Protection Period (180 days after the termination of this Agreement), Buyer acquires any property Buyer was introduced to (or otherwise became aware of) during the term of this Agreement, then Buyer agrees to pay Broker the compensation provided for in this Section.

Section 4 – Property Search Criteria: At Your request, Broker will conduct a property search for You based on the criteria You provide including price range, property type, features, location, and any additional criteria You specify. Some properties that are available for sale may include an offer of compensation ("**Compensation Offer**") to a buyer's broker (including Broker) from the seller ("**Seller**") or listing broker ("**Listing Broker**"). A Compensation Offer may be lower, higher, or the same as the amount of the Commission that You agree to pay Broker in Section 3. Other properties may not include any Compensation Offer. **Broker will inform you of all properties that meet Your search criteria regardless of any Compensation Offer, which will provide You with the greatest exposure to available properties, but which may also obligate You to pay all or part of the Commission at closing.** If You purchase a Property, the amount that You owe Broker under Section 3 will be reduced by the amount of the Compensation Offer received by Broker on Your side of the transaction.

You acknowledge and understand that (a) You may include a provision in Your purchase offer to the Seller that reflects Your expectations, if any, regarding the amount of the Commission, if any, that You want the Seller to pay to Broker to reduce or eliminate Your obligation under Section 3, (b) if accepted by the Seller, You should ensure that the Seller's agreement to pay any part of the Commission is included in Your final sales contract, (c) any seller concessions that are offered and agreed to will first be applied to payment of any unpaid portion of the Commission at closing, and (d) if Broker is also the Listing Broker, the list side commission paid to Broker by the Seller is not included in calculating the amount paid to Broker at closing for purposes of reducing any portion of the Commission You may owe to Broker. Broker will not accept compensation on your side of the transaction from any source that exceeds the amount agreed to herein.

Section 5 – Failure to Close: If a transaction fails to close because of fault on the part of Buyer, the Commission provided for in Section 3 will not be waived, and will be due and payable immediately. Fault on the part of Buyer will not include Buyer's cancellation of a purchase agreement per the purchase agreement's terms.

Section 6 – Indemnification: Buyer agrees to defend, indemnify and hold Broker and Designated Agent harmless from all claims, disputes or litigation and all judgments, loss, damage, cost or expense, including attorneys' fees, incurred by Broker or Designated Agent, arising out of Buyer's breach of this Agreement, or the collection of fees or Commissions due Broker pursuant to the terms and conditions of this Agreement or arising out of Buyer's misstatements or misinformation provided by Buyer to Broker and/or Designated Agent. Damages for any fault or breach of contract on the part of the Broker and/or Designated Agent shall be limited to the amount of the commission that the Broker received. In no event shall Buyer receive any exemplary damages from Broker. If Buyer fails to pay any Commission earned as described in Section 3, Buyer is responsible for all costs and expenses, including reasonable attorney's fees incurred by Broker to collect the Commission.

Section 7 – Entire Agreement: This Agreement constitutes the entire agreement between the parties relating to the subject hereof, and any prior agreements pertaining hereto, whether oral or written, have been merged and integrated into this Agreement. Any modification of the terms of this Agreement must be in writing and signed or initialed by the parties. No assignment of Buyer's interest under this Agreement and no assignment of any rights in real property obtained for Buyer pursuant to this Agreement shall operate to defeat any of Broker's rights under this Agreement. This Agreement may be executed in multiple copies and Buyer's signature hereon acknowledges that Buyer has received a signed copy. You received the Other Important Information for Buyers set forth on page 2 of this Agreement, which is incorporated into and part of this Agreement.

Additional Terms: _____

Buyer shall not be responsible for any difference in agreed upon commission paid by seller, versus what is agreed upon in this contract.

Brian Gibson
dotloop verified
04/20/26 6:26 PM EDT
AKZU-ZLXV-RJCC-UEAS

DESIGNATED AGENT SIGNATURE / DATE

SolYoung Park
dotloop verified
04/20/26 8:39 PM EDT
LLZ4-CSJS-VEGW-H2MU

BUYER/BENEFICIARY/DATE & TIME

CITY/STATE/ZIP

ADDRESS

BUYER/BENEFICIARY/DATE & TIME

MOBILE PHONE

CITY/STATE/ZIP

ADDRESS

sarahpark0806@gmail.com

EMAIL ADDRESS

Other Important Information for Buyers

This information is included in and made a part of the Coldwell Banker Realty Buyer Representation Agreement.

Representation: Broker reserves the right to appoint additional designated agents for Buyer when, in Broker's discretion, it is necessary. Buyer shall be informed in writing within a reasonable time of any such appointment. Buyer represents that Buyer has not entered into any other exclusive buyer representation agreement that is currently in effect. Buyer understands that this Agreement contemplates that if Buyer acquires any property, whether through the efforts of the Buyer, another real estate firm besides Broker's, or anyone else, Buyer will be obligated to compensate Broker pursuant to Section 3 of the Agreement.

Other Buyers & Sellers: Buyer understands that the Designated Agent may represent other buyers and sellers, and that the Designated Agent may represent other prospective buyers who may be interested in acquiring the same property that Buyer is interested in acquiring.

Previous Representation: Buyer understands that Broker and/or Designated Agent may have previously represented the seller from whom Buyer wishes to purchase property. During that representation, Broker and/or Designated Agent may have learned material information about the seller that is considered confidential. Under the law, neither Broker nor Designated Agent may disclose any such confidential information to Buyer even though the Broker and Designated Agent now represent the Buyer.

Agency Relationships: Buyer has read Broker's Consumer Guide to Agency Relationships, agrees that the provisions of that policy are a part of this Agreement, and consents to Broker and its real estate salespersons and agents acting in accordance with that policy.

Fair Housing and Blockbusting Statement: It is illegal, pursuant to the Ohio fair housing law, division (H) of section 4112.02 of the Revised Code, and the federal fair housing law, 42 U.S.C.A. 3601, as amended, to refuse to sell, transfer, assign, rent, lease, sublease, or finance housing accommodations, refuse to negotiate for the sale or rental of housing accommodations, or otherwise deny or make unavailable housing accommodations because of race, color, religion, sex, familial status as defined in section 4112.01 of the Revised Code, ancestry, military status as defined in that section, disability as defined in that section, or national origin or to so discriminate in advertising the sale or rental of housing, in the financing of housing, or in the provision of real estate brokerage services. It is also illegal, for profit, to induce or attempt to induce a person to sell or rent a dwelling by representations regarding the entry into the neighborhood of a person or persons belonging to one of the protected classes.

Property Condition & Service Providers: Buyer acknowledges that Broker and Designated Agent are being retained solely as real estate professionals, and not as attorneys, tax advisors, surveyors, structural engineers, home inspectors, environmental consultants, architects, contractors, or other professional service providers. Buyer understands that such other professional service providers are available to render advice or services to the Buyer, if desired, at Buyer's expense and the choice of any service provider rests solely with Buyer. It is the responsibility of Buyer to (a) obtain a property survey, (b) personally verify any zoning, square footage, building materials, and permitted uses, (c) obtain any inspections, including inspections of the condition, type, quality, and remaining useful life of the roof, structural, appliances, pool, plumbing, electrical, HVAC systems, termite, open permits, unpermitted improvements or repairs, and septic/water/sewage (hookups, source of service, and condition); (d) have an inspector verify prior to closing that any agreed repairs were properly made by an appropriately licensed person; and (e) personally perform a walkthrough inspection before closing. It is the responsibility of Buyer to personally review any public information regarding any property Buyer is interested in purchasing as it may indicate a discrepancy with other information provided to Buyer. If there are any discrepancies, Buyer agrees (i) to investigate the reason for any such discrepancy and/or consult with a lawyer, general contractor, or other professional, and (ii) not to rely on Broker or Designated Agent for any of the matters described above.

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ONE-STOP SHOPPING *for your* HOME BUYING JOURNEY

Coldwell Banker Realty is committed to simplifying your home buying process while positioning you for success in a competitive home buying market. Our affiliated service providers are on standby, ready to assist you in all aspects of your transaction in a seamless, professional, and integrated manner.

MORTGAGE SERVICES

Speed and simplicity matter. The ability to qualify for a mortgage on favorable terms and close quickly can mean the difference between securing your dream home and falling short in a competitive market.

Guaranteed Rate Affinity offers a **fast, competitive, and seamless process**. Thanks to Guaranteed Rate Affinity's digital mortgage platform, the entire process can be completed in as little as **15 minutes**.

By initialing YES below, You consent to being contacted by Guaranteed Rate Affinity by phone, text, automated telephone dialing system or artificial pre-recorded voice message using the contact information you provided on page 2. You are not required to provide consent in order to obtain mortgage products or services from Guaranteed Rate Affinity.

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(Initial) YES, I would like additional information from Guaranteed Rate Affinity (Mortgage)

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(Initial) NO, I am not interested in learning more about Guaranteed Rate Affinity's competitive mortgage products and services.

Don't delay – get started on simplifying your transaction and getting ready to buy!



COLDWELL BANKER | REALTY

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